FILED
SEP 03 2026
FRESNO COUNTY CLERK
By DEPUTY

DECLARATION BY AUTHOR(S) OF ARGUMENTS OR REBUTTALS

(E.C. §9600)

All arguments concerning measures filed pursuant to Division 9 of the Elections Code shall be accompanied by the following declaration to be signed by each author of the argument/rebuttal. Names and titles will be printed in the Voter Pamphlet portion of the County Voter Information Guide in the order provided below.

The undersigned author(s) of the: ☐Argument in Favor ☐Rebuttal to Argument in Favor ☐Argument Against ☒Rebuttal to Argument Against

of ballot measure D (Name and/or Letter) at the November 3, 2026 General Election (Title of Election)

for the Fresno County (Jurisdiction) to be held on 11/03/2026 (Date) hereby state that this argument is true and correct to the best of his/her/their knowledge and belief.

1.	Jerry P. Dyer (Printed Name)		
	Mayor of Fresno (Title to Appear on Argument)	09/03/2026 (Date)	
2.	Nelson Esparza (Printed Name)	(Signature)	
	Fresno City Council President (Title to Appear on Argument)	09/03/2026 (Date)	
3.	(Printed Name)	(Signature)	
	(Title to Appear on Argument)	(Date)	
4.	(Printed Name)	(Signature)	
	(Title to Appear on Argument)	(Date)	
5.	(Printed Name)	(Signature)	
	(Title to Appear on Argument)	(Date)	

IMPORTANT FILING INFORMATION: I, Toni Hunter (Printed Name) (Signature) am the designated filer of the above titled argument/rebuttal. Please notify me of any questions pertaining to this filing. Below is my contact information.

Mailing Address: 2600 Fresno Street E-Mail Address:

Contact Numbers: 559-621-8000 Daytime 559-621-8000 Evening Fax

To be completed for arguments filed by the governing body or bona fide association of citizens.

ARGUMENT/REBUTTAL FILED BY (Check any of the following that apply):

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A. Governing Body

☐ **Board of Supervisors**

☑ **District Board** (Fresno City Council /Mayor)

Contact Person's Signature: _____

Contact Person's Name (Printed): Nelson Esparza

Title: Fresno City Council President

Phone: 559 621 8000 Fax: _____ E-mail: _____

B. **The following information is submitted by the author(s) to establish that the organization or group is a Bona Fide Association of Citizens**

☐ **Bona Fide Association of Citizens (Group or organization has <u>not</u> been formed to support or oppose the measure)**

Name of Association: _____

Principal Officer's Signature: _____

Principal Officer's Name (Printed): _____

Title: _____

Phone: _____ Fax: _____ E-mail: _____

☐ **Bona Fide Association of Citizens (Group or organization has been formed to support or oppose the measure)**

Name of Association: _____

Principal Officer's Signature: _____

Principal Officer's Name (Printed): _____

Title: _____

Phone: _____ Fax: _____ E-mail: _____

Authorization for Another Person or Persons to Sign Rebuttal Argument Form

I, Nelson Esparza (Print name of filer of the original argument) authorize the following person to sign the rebuttal to the argument

Check one:

☐ In favor of

☒ Against

Measure D (Letter) for the 11/03/2026 (Election Date) election.

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Choose one of the Following:

☐ In place of _____ (Printed Name of Argument Signer) _____ (Signature of Argument Signer), add:

_____ (Printed Name of Rebuttal Signer) _____ (Signature of Rebuttal Signer)

_____ (Title to Appear on Rebuttal) _____ (Date)

☒ In addition to signers of the direct argument, add:

Jerry P. Dyer (Printed Name of Rebuttal Signer)

Mayor of Fresno (Title to Appear on Rebuttal) 09/03/2026 (Date)

Please remember, no more than five signatures will be included with any argument. The total of direct argument signers, replaced signers and new rebuttal signers must be no more than five.

E.C. §§9164, 9285, 9501.5

Signature of Filer: _____ Date: 09/03/2026

Measure D is the most effective way to ensure Fresno residents and businesses are provided the highest quality roads, public safety, transportation, and essential services. This measure protects Fresno from losing millions in investment as a consequence of Measure C expiring in 2027 and the potential of no replacement being approved.

A YES vote on Measure D avoids an immediate and impending $56 million funding shortfall that may be created by the expiration of Measure C, which would lead to:

- Potential workforce reductions
- Idling dozens of road projects
- Elimination of bus routes that connect families to school, work, and medical services

Measure D is designed with clear safeguards to ensure City of Fresno taxpayers are not double taxed for transportation infrastructure while protecting existing transportation and public safety resources.

It is designed to provide Fresno a short-term solution in funding while Fresno County determines long-term transportation funding through another Measure and does not raise current tax rates. Every dollar from Measure D will be invested in the City of Fresno.

Measure D isn't a forever tax. It automatically expires either in 10 years or earlier if a countywide transportation sales tax is approved to replace Measure C.

Measure D includes strict accountability guardrails, including a Citizen's Oversight committee to review and audit expenditures and a publicly available annual audit report.

Fresno families deserve the highest quality roads, public safety, and essential services. Measure D ensures we maintain a strong city, built on good roads and safe neighborhoods.

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